CORTMAN INVESTMENTS (PRIVATE) LIMITED
versus
MARONDERA TOWN COUNCIL
and
MINISTER OF TRANSPORT AND INFRASTRUCTURAL DEVELOPMENT
and
MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 6 & 10 November 2025

Opposed Application – Ex tempore judgment

S. Bhebhe, for the applicant
G. Ranganayi, for the 1st respondent

MAMBARA J:

[1] This is an application in which the applicant, Cortman Investments (Pvt) Ltd, seeks declaratory and interdictory relief against the first respondent, Marondera Town Council (along with cited others as second and third respondents). The crux of the applicant's case is that the first respondent's sale of certain stands in Marondera was unlawful – allegedly *ultra vires* the provisions of the Roads Act [*Chapter 13:18*], the Regional Town and Country Planning Act [*Chapter 29:12*], and the Urban Councils Act [*Chapter 29:15*]. The applicant prays for a declarator to that effect and a consequential interdict to stop the disposition or transfer of the stands.

[2] The respondents oppose the application. In limine, they challenge the applicant's *locus standi*, contending that Cortman Investments has no direct and substantial interest in the stands or the impugned sale. They argue that the applicant is a stranger to the transaction and thus not an "interested person" entitled to seek a declaratory order under the High Court's declaratory jurisdiction. On the merits, the respondents maintain that the sale was above board and done within the Council's lawful authority. They submit that the applicant has failed to establish a clear right warranting a final interdict, and that the various statutes cited have been misconstrued by the applicant. In their view, the legislation in question does not prohibit the sale of the stands under the circumstances,

and any procedures required by those Acts were duly followed. Accordingly, the respondents aver that no illegality has been demonstrated, and the application is devoid of merit.

[3] The first hurdle for the applicant is *locus standi*. It is trite that not every person can rush to court for a declaratory order; the applicant must show a direct and substantial interest in the subject matter. As GUBBAY CJ observed in *Johnson* v *AFC* 1995 (1) ZLR 65 (S), the "condition precedent to the grant of a declaratory order, under section 14 of the High Court Act, is that the applicant must be an 'interested person' in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future, or contingent right." In simpler terms, the law requires that the applicant's rights or legal interests *vis-à-vis* the subject matter would be altered or affected by the relief sought. Here, the applicant has not demonstrated such an interest. It neither owns nor occupies the stands in question, and there is no evidence that it participated in or was prejudiced by the sale. The applicant's claim appears to be based on a general assertion of illegality, rather than any infringement of its own rights. I am inclined to agree with the respondents that the applicant lacks the requisite *locus standi* to bring this action.

[4] Even if one were to assume (for argument's sake) that the applicant had surmounted the standing hurdle, its case still falters on the requirements for final interdictory relief. The law is settled that for a final interdict to be granted, an applicant must establish: (i) a clear or definite right; (ii) an injury actually committed or reasonably apprehended; and (iii) the absence of a suitable alternative remedy. This triad of requirements, emanating from the classic case *Setlogelo* v *Setlogelo* 1914 AD 221, is a high bar. In the present matter, the applicant has failed to satisfy the very first element – a clear right. The purported right the applicant seeks to protect is nebulous. It is not enough to point to a general interest in lawful governance or to invoke statutory provisions in the abstract. The applicant needed to identify a specific legal right of its own that is being infringed or imminently threatened by the sale of the stands. No such clear right has been established on the papers. Consequently, the foundation for any interdict is absent. Moreover, the applicant's reliance on the three statutes (the Roads Act, Regional Town and Country Planning Act, and Urban Councils Act) is misguided and was effectively rebutted by the respondents. The applicant has not pointed to any particular section of these Acts that was violated by the first respondent. For instance, the Roads Act governs the proclamation

and management of roads; the applicant did not show that the stands in question were on a road or road reserve requiring ministerial authority to alienate. Similarly, under the Urban Councils Act, local authorities are generally empowered to dispose of council land provided certain procedures (such as Council resolutions or approvals) are followed. The applicant placed no evidence before the Court that the Town Council failed to follow the lawful procedures or that the sales were conducted ultra vires the Council's powers. In essence, the applicant has misconstrued the import of the statutes – alleging illegality without substantiating how these laws were breached. Courts of law decide matters on evidence and clear legal principles, not on speculative or uninformed interpretations of statutes. I find that the applicant has not established any *prima facie* unlawful act by the respondents. On the contrary, the first respondent's decision to sell the stands appears to fall within its mandate, and no clear legal basis has been shown for this Court to intervene.

[5] In the result, this application cannot succeed. The applicant has failed to meet the requirements for the relief sought, both procedurally (in terms of standing) and substantively (in proving a clear right and illegality). The respondents' points in opposition are well-taken. This Court will not issue a declaratory or interdict in a factual vacuum or at the instance of a party with no real stake in the matter.

Disposition

1. The application is accordingly dismissed.
2. The applicant shall bear the costs of suit, on the ordinary scale.

MAMBARA J: ……..……...

Kantor & Immerman, applicant's legal practitioners
IEG Musimbe and Partners, first respondent' legal practitioners